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Purchasing property in other EU countries

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Purchasing property in other EU countries

SUMMARY OF:

Chapter 4 Capital and Payment (Articles [63](#), [64](#), [65](#) and [66](#)) Treaty on the Functioning of the EU concerning purchasing real estate in other European Union (EU) countries

WHAT IS THE AIM OF THESE ARTICLES?

They set out the laws governing the free movement of capital* in the European Union (EU), including the right to purchase property in another EU country and exceptions to the general principle.

KEY POINTS

The **Treaty on the Functioning of the European Union (TFEU)** establishes the general principle of the free movement of capital among EU countries as well as between them and non-EU countries. This includes the rights of citizens to purchase property, such as a holiday home or secondary residence.

While free movement applies to all EU countries, at the time of the accession of the new EU countries, certain **transitional periods and exceptions** were negotiated for the free movement of capital, relating also to the purchase of property and agricultural and forest land in specific countries. These exceptions are set out in a number of protocols to the TFEU and in the Acts of Accession of EU countries.

Specifically:

- [Protocol No 32 to the Treaty on the European Union \(TEU\)](#) permits **Denmark** to maintain existing legislation which restricts the acquisition of second homes by non-nationals;
- [Protocol No. 6 to the Act of Accession 2003](#) allows **Malta** to restrict the acquisition of secondary residences;
- [Protocol No. 2 to the Act of Accession Finland 1994](#) allows for specific restrictions regarding the **Åland Islands**, including e.g. the acquisition of real estate;
- [Annex V of the Act of Accession Croatia 2011](#) permits **Croatia** to maintain certain restrictions on the acquisition of agricultural land by EU and [EEA](#) (European Economic Area) nationals for 7 years from the date of accession, with the possibility of a 3-year extension.

BACKGROUND

For more information, see:

- [‘Free movement of capital’](#)  on the European Commission's website.

* KEY TERMS

Free movement of capital: at the heart of the EU's single market and one of its ‘4 freedoms’ (in addition to free movement of people, goods and services), free movement of capital enables citizens and companies to do many investment operations in other EU countries.

MAIN DOCUMENTS



Consolidated version of the Treaty on the Functioning of the European Union - Part Three: Union policies and internal actions - Title IV: Free movement of persons, services and capital - Chapter 4: Capital and payments - [Article 63](#) (ex Article 56 TEC) (OJ C 202, 7.6.2016, p. 71)

Consolidated version of the Treaty on the Functioning of the European Union - Part Three: Union policies and internal actions - Title IV: Free movement of persons, services and capital - Chapter 4: Capital and payments - [Article 64](#) (ex Article 57 TEC) (OJ C 202, 7.6.2016, p. 72)

Consolidated version of the Treaty on the Functioning of the European Union - Part Three: Union policies and internal actions - Title IV: Free movement of persons, services and capital - Chapter 4: Capital and payments- [Article 65](#) (ex Article 58 TEC) (OJ C 202, 7.6.2016, pp. 72–73)

Consolidated version of the Treaty on the Functioning of the European Union - Part Three: Union policies and internal actions - Title IV: Free movement of persons, services and capital - Chapter 4: Capital and payments - [Article 66](#) (ex Article 59 TEC) (OJ C 202, 7.6.2016, p. 73)

RELATED DOCUMENTS

Treaty between the Kingdom of Belgium, the Republic of Bulgaria, the Czech Republic, the Kingdom of Denmark, the Federal Republic of Germany, the Republic of Estonia, Ireland, the Hellenic Republic, the Kingdom of Spain, the French Republic, the Italian Republic, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Grand Duchy of Luxembourg, the Republic of Hungary, the Republic of Malta, the Kingdom of the Netherlands, the Republic of Austria, the Republic of Poland, the Portuguese Republic, Romania, the Republic of Slovenia, the Slovak Republic, the Republic of Finland, the Kingdom of Sweden, the United Kingdom of Great Britain and Northern Ireland (Member States of the European Union) and the Republic of Croatia concerning the accession of the Republic of Croatia to the European Union ([OJ L 112, 24.4.2012](#), pp. 6–110)

Act concerning the conditions of accession of the Czech Republic, the Republic of Estonia, the Republic of Cyprus, the Republic of Latvia, the Republic of Lithuania, the Republic of Hungary, the Republic of Malta, the Republic of Poland, the Republic of Slovenia and the Slovak Republic and the adjustments to the Treaties on which the European Union is founded - [Protocol No 6](#) on the acquisition of secondary residences in Malta (OJ L 236, 23.9.2003, p. 947)

Act concerning the conditions of accession of the Kingdom of Norway, the Republic of Austria, the Republic of Finland and the Kingdom of Sweden and the adjustments to the Treaties on which the European Union is founded - [Protocol No 2](#) on the Åland islands (OJ C 241, 29.8.1994, p. 352)

Consolidated version of the Treaty on the Functioning of the European Union - [Protocol \(No 32\)](#) on the acquisition of property in Denmark (OJ C 202, 7.6.2016, p. 317)

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